21

93

PLAT OF

SNOWBLAZE RECREATIONAL TRACTS, DIV. NO. 1

SECTION 22, TWP. 28 N., R. 45 E., W. M.

SPOKANE COUNTY, WASHINGTON

See over

DESCRIPTION

LAND SURVEYOR'S CERTIFICATE

ACKNOWLEDGEMENTS

DECLARATION

APPROVALS

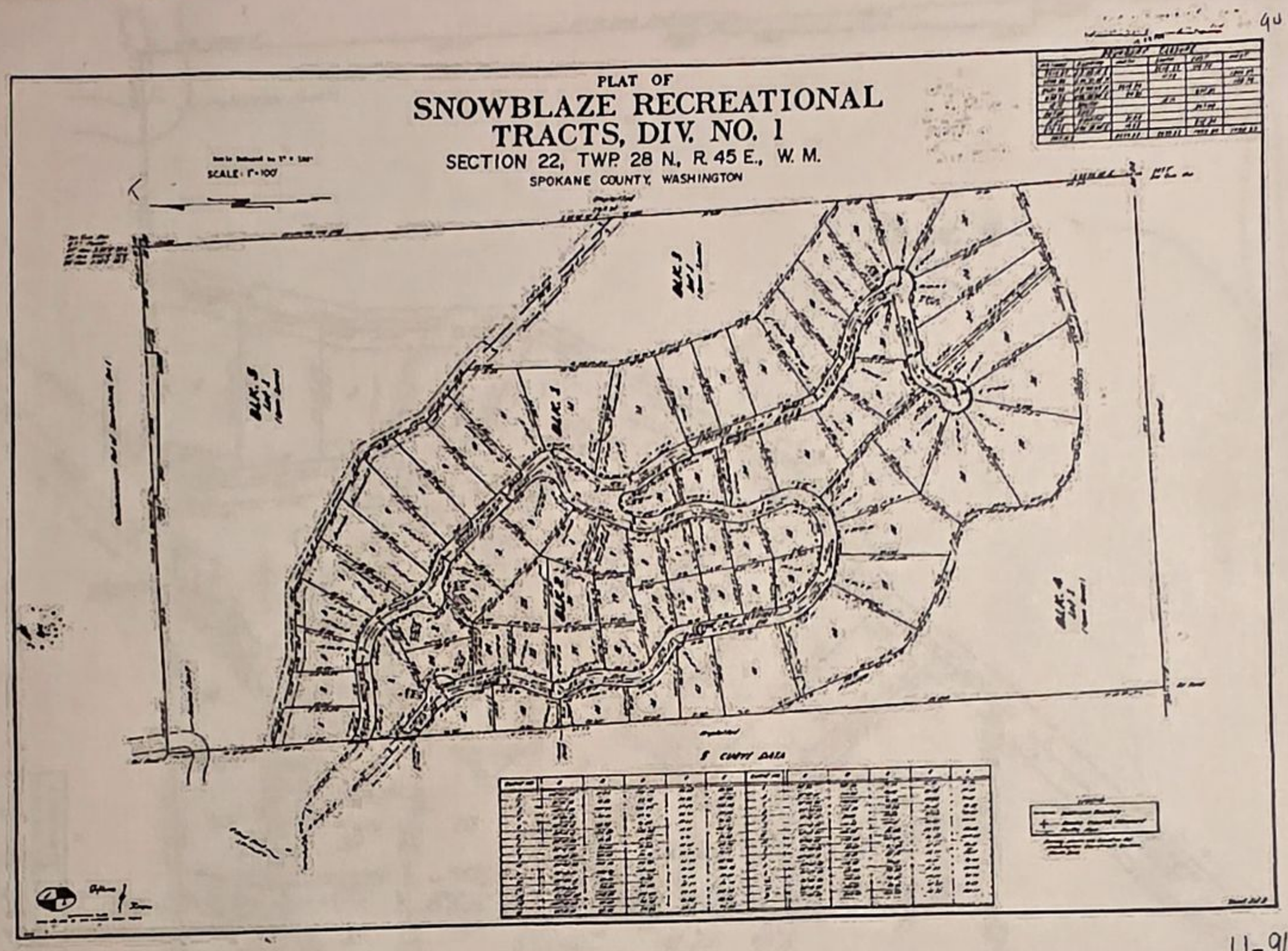
CERTIFICATE OF TITLE

RECORDING CERTIFICATE

SECTION SUBDIVISION

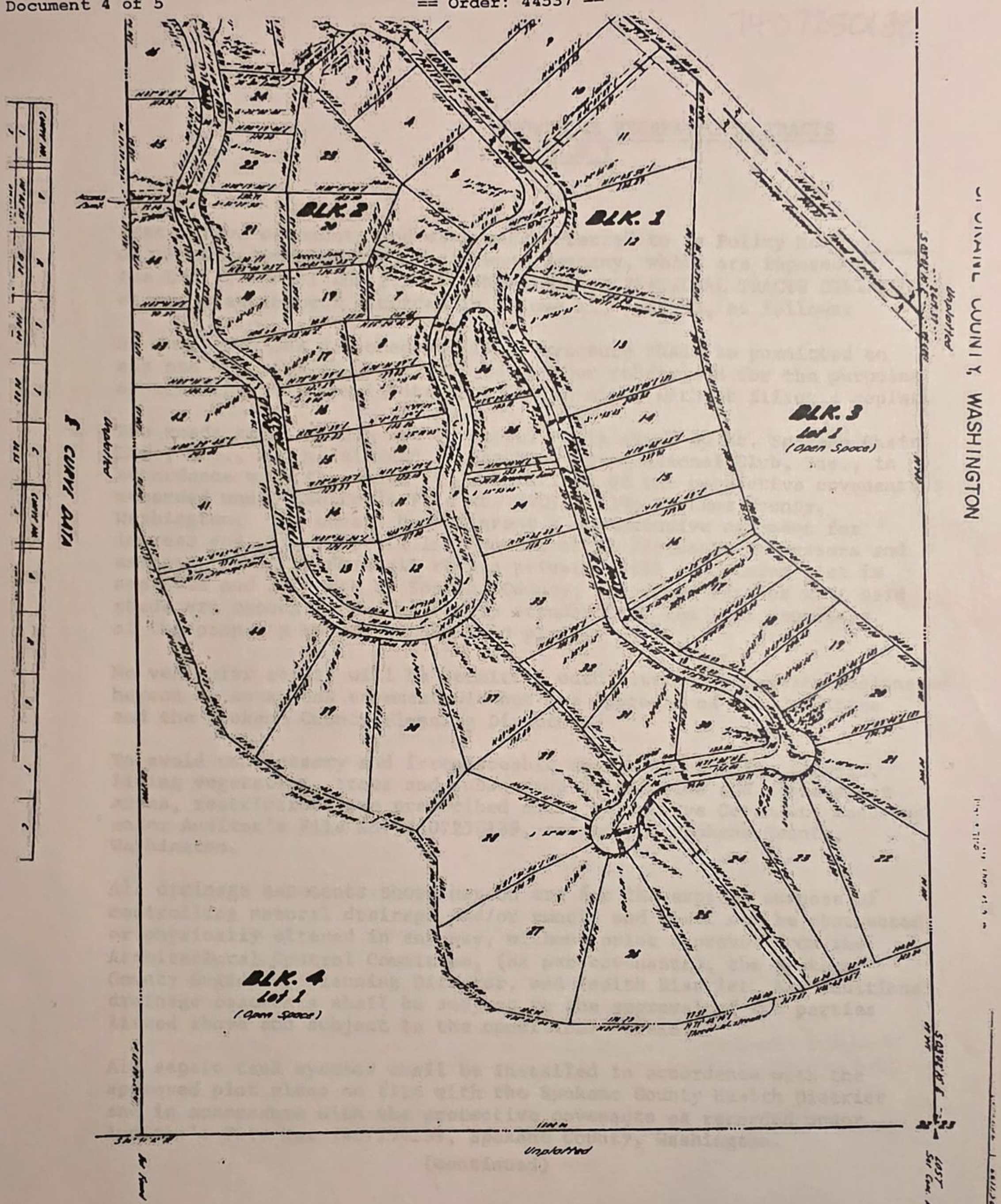
VICINITY MAP

11-93


PLAT OF
SNOWBLAZE RECREATIONAL
TRACTS, DIV. NO. 1
SECTION 22, TWP. 28 N., R. 45 E., W. M.
SPOKANE COUNTY, WASHINGTON
SCALE: 1" = 100'

11-94

BLK. 5
Lot 1
(Open Space)
BLK. 2
BLK. 3
BLK. 3
Lot 1
(Open Space)
Unplatted
Unplatted
CURVE DATA


BLK. 2
BLK. 1
BLK. 3
Lot 1
(Open Space)
BLK. 4
Lot 1
(Open Space)
PRIVATE ROAD
Unplatted
Unplatted
Unplatted
S CURVE DATA
U. CHAINE COUNTY, WASHINGTON

7407250138

SNOWBLAZE RECREATIONAL TRACTS
DIVISION I

Restrictive covenants and easements referred to in Policy No._____ of the Transamerica Title Insurance Company, which are imposed by the Dedication of the Plat of SNOWBLAZE RECREATIONAL TRACTS DIVISION I, as per plat thereof recorded in Volume 11, page 93, as follows:

No more than one detached dwelling structure shall be permitted on any one lot, nor shall any lot be further subdivided for the purposes of creating additional lots or building sites without filing a replat.

The roads shown hereon are to be privately owned by Mt. Spokane Chair Lift, Inc., and maintained by Snowblaze Recreational Club, Inc., in accordance with the rules and regulations of the protective covenants recorded under Auditor's File No. 7407250139, Spokane County, Washington. The owners hereby grant a nonexclusive easement for ingress and egress to all lot owners, their invitees, successors and assigns. Said roads shall remain private until an amended plat is approved and accepted by Spokane County; provided further that said roads are reconstructed to County standards at the sole expense of the property owners within said plat.

No vehicular access will be permitted onto lots not otherwise designated hereon by an access easement without the approval of the Committee and the Spokane County Planning Director.

To avoid unnecessary and irreplaceable damage to existing terrain, living vegetation, trees and subsurface drainfields and replacement areas, restrictions are prescribed under Protective Covenants recorded under Auditor's File No. 7407250139, records of Spokane County, Washington.

All drainage easements shown hereon are for the express purpose of controlling natural drainage and/or runoff and shall not be obstructed or physically altered in any way, without prior approval from the Architectural Control Committee, (as per covenants), the Spokane County Engineer, Planning Director, and Health District. Any additional drainage easements shall be subject to the approval of the parties listed above and subject to the conditions herein.

All septic tank systems shall be installed in accordance with the approved plot plans on file with the Spokane County Health District and in accordance with the protective covenants as recorded under Auditor's File No. 7407250139, Spokane County, Washington.

(continued)

Page 2
Snowblaze Recreational Tracts
Division I
(Dedication of the Plat)

A public water system as approved by County and State Health authorities will be installed within this plat, and the subdivider will provide for individual service to each lot prior to sale of each lot.

The areas designated as Lot 1, Block 3; Lot 1, Block 4; and Lot 1, Block 5 shall be used as natural open space areas and preserved as such; except where altered to accommodate non-habitable recreationally oriented facilities, which as determined by the Club, will enhance the use of said areas for the Club members.

Said open space areas shall be maintained for the use and benefit of members and guests of Snowblaze Recreational Club, Inc., as further described in the Protective Covenants as recorded under Auditor's File No. 7407250139, records of Spokane County, Washington.

EXCEPTIONS: Mt. Spokane Chair Lift, Inc., hereby notifies any and all potential lot owners that it reserves the right to erect chair lifts, tramways, and surface tows over Lot 1, Block 3; Lot 1, Block 4; and Lot 1, Block 5. Other recreational facilities and structures incident thereto may be constructed upon, over, across or through said Lot 1, Block 3; Lot 1, Block 4; and Lot 1, Block 5 upon application of Snowblaze Recreational Club, Inc., (a non-profit Washington corporation) with the consent of Mt. Spokane Chair Lift, Inc., and compliance with applicable county regulations.

INCLUSIONS, Additional information pertinent to the above, together with the other restrictions, covenants, and easements are recorded as Protective Covenants under Auditor's File No. 7407250139, records of Spokane County, Washington.

UTILITY EASEMENT, An easement within five feet of all lot property lines is hereby granted for the installation and maintenance of utilities, subject to Article VI, Paragraph 3 of said Protective Covenants.

The easements designated on the vicinity map as "Southerly easement", "Northerly easement", and "Plat easement", are granted for the purpose of ingress and egress, and for the installation and maintenance of utilities and are recorded under Auditor's File No. 565091C.

(continued)

Page 3
Snowblaze Recreational Tracts
Division I
(Dedication of the Plat)

Any amendments to sections of the covenants pertinent to the above or vacation of said covenants in whole or in part, shall not alter or void restrictions shown hereon or referred to in said Covenants.

****

hm

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7509020224

VOL. 259 PAGE 314

AGREEMENT RE UNDERGROUND SERVICE - SUBDIVISIONS

THIS AGREEMENT made and entered into this 27TH day of JANUARY, 1975, by and between MT. SPOKANE CHAIR LIFT INC. hereinafter called "Developer", and INLAND POWER & LIGHT CO., a Washington corporation, hereinafter called "Inland,"

WITNESSETH:

WHEREAS, the Developer is the owner of real property (hereinafter called "Project"), situated in the County of SPOKANE, State of Washington, more particularly described in Exhibit A attached hereto and by reference made a part hereof; and

WHEREAS, the Developer desires Inland to provide underground electric service for said property; and

WHEREAS, the Developer has on file with the County Auditor a plat for said Project above described, which plat has received required approval of all local, state, and federal authorities or agencies necessary to commence construction thereon; and

WHEREAS, Inland agrees to use its equipment and personnel to install the primary system to a lot line, and the Developer/ or his assigns will provide excavation and backfilling from the lot line to the metering point; and

WHEREAS, said plat accurately describes utility easement routes and properly reserves them for underground utilities; and

WHEREAS, the Developer has agreed to conduct the construction on said Project in an orderly fashion, to permit Inland to make practical minimum installations, and minimize the necessary trips to the Project;

NOW, THEREFORE, it is agreed as follows:

1. The Developer, his successors and assigns, agrees that all electrical service used on the Project will be underground electrical service, and Inland, its successors and assigns, agrees to install a primary underground electrical service at no charge for installation costs to the Developer, except as provided herein. Said installation shall be according to REA and NEC specifications.

Said installation shall be upon easement routes within the plat as staked out by the Developer, described in Exhibit A.

It is understood and agreed that following the initial installation of said primary system that the Developer will bear all relocation costs or repair costs for said system, including damage due to acts of God or any act not occasioned by Inland's negligence, said repair or relocation costs to include damage from digging into said underground system by third parties, any changes in lot plans or street grades, relocation or addition of lots, or relocation for other utility services.

2. The layout plan attached hereto as Exhibit B and made a part hereof shall be approved by Inland and the Developer showing the exact location of all easements or areas reserved in the plat for underground utilities. Said Exhibit B shall also set forth the order of installation and projected completion dates by the Developer.

A. The Developer will concentrate his development in a particular area or areas as shown on Exhibit B, and Inland will install the service as needed.

Excise Tax on Real Estate
Sale Amount
Date 9/2/75
Deputy

FILED OR RECORDED
REQUEST OF Inland Power & Light
SEP 2 2 31 PM '75
VERNON W. OHLAND, AUDITOR
SPOKANE COUNTY, WASH.
DEPUTY
4.00
Req. E 320 2nd Ave 99204

3. At the time of execution of this agreement, the Developer will deliver to Inland a properly executed easement in a form approved by Inland, to install, maintain, enlarge, improve, or remove all of said systems, together with the right of ingress and egress thereon. Said easement shall be accompanied by a standard form title insurance policy in the sum of $ _____ insuring said easement in favor of Inland. Where the Developer no longer has title to the property covered in the Project, the Developer agrees to obtain said easement at his sole expense on behalf of Inland.

The following terms and conditions shall govern the installation of said system:

A. No overhead temporary lines are required.

B. The Developer agrees that he will develop the Project in an orderly and economical manner so that minimum installations can be made initially and that additional primary runs can be added as homes or other units are built within the development.

C. No direct primary burial conductors will be placed in the same ditches with water pipes.

D. All underground conductors, lines and meters shall remain the property of Inland.

E. All low voltage secondary and service conductors will be supplied and installed by Inland from the transformer to within three feet of the conduit for the meter. Upon installation, the conductor will remain the property of Inland Power & Light Co., and the repair and maintenance shall be the Developer's responsibility in accordance with Inland's policies on repairing underground service.

F. Inland will connect the service conductors to the transformer and to the conductors that are stubbed out from the meter on the Project.

G. Installation will be made according to layout plans and specifications. Once agreement on location of electrical conductors is made, any relocation costs or repair costs incurred due to changes in lot plans, roads, or utility services will be borne by the Developer.

H. The Developer will provide both personnel and equipment to perform all ditching and backfilling from the lot lines, both for primary and secondary conductors, on the Project to Inland's specifications and backfill the ditch following the installation of the underground conductor. Inland will, however, provide the ditching for the primary conductors to the lot lines.

I. Where unusual conditions exist, such as excessive rock, or similar obstacles to ditching, the Developer will pay to Inland the additional cost for blasting, or additional labor or material to remove and fill such obstacles.

4. The Developer agrees to coordinate the installation of other underground utilities to facilitate installation of electrical service.

5. Inland shall not be required to commence, or, if Inland has commenced, to continue the construction of the underground system herein provided for until the terms of this agreement have been fully complied with.

6. Commencing on July 1, 1976, the Developer agrees to pay to Inland Inland's standard monthly minimum on each lot in the Project. This charge shall constitute a lien upon all real property for any lot for which said charge has not been paid; and if not paid, it shall also be the responsibility of any subsequent purchaser, successor, and/or assign who shall continue to make said payments so long as Inland is prepared to supply power to the Project. The Developer agrees to continue to be responsible for this charge until a sale of any lot is complete and Inland is notified in writing of such new owner.

If a lot has been sold and there is no connected load on said lot, the lot owner of record shall be obligated to pay Inland Inland's standard monthly minimum charge on the lot.

7. If any legal action is necessary to enforce the terms of this agreement, or if Inland is required to foreclose any lien granted herein, it shall be entitled to a reasonable attorney's fee in addition to costs and title expense in connection therewith.

8. This agreement is binding upon and shall inure to the benefit of the parties hereto, their successors and assigns.

Wherever the term "Developer" is used herein, it shall also apply to any heirs, successors or assigns of the Developer.

MLT Enterprises Chain Lift Inc.
Jack E. Talley pres
DEVELOPER

INLAND POWER & LIGHT CO.

By: Leo Thomas
PRESIDENT

ATTEST:

Ethel S. Kirby
SECRETARY

INLAND POWER & LIGHT CO.:

ATTEST:

Donald E. Tinkerd
SECRETARY

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7502280104

OFF. VOL. 219 PAGE 1022

Corporate Form M.F.L.

RIGHT-OF-WAY EASEMENT - UNDERGROUND

KNOW ALL MEN BY THESE PRESENTS, That the undersigned corporation, Mt. Spokane Chairlift, Inc. with its registered office at N. 5328 Washington, Spokane, Washington 99208, for a good and valuable consideration, the receipt whereof is hereby acknowledged, does hereby convey and grant to INLAND POWER & LIGHT COMPANY, a Washington corporation (hereinafter called "Grantee") and to its successors or assigns, the right, privilege and authority, to install, reinstall, construct, erect, alter, repair, energize, operate and maintain electric underground transmission and distribution facilities, consisting of vaults, manholes, handholes, ducts, conduits, cables, wires and other necessary or convenient appurtenances; ALSO, the right, privilege, and authority to install, reinstall, construct, erect, alter, repair, energize, operate and maintain at ground level, electric transformer units, electruc junction cabinets and/or containers, together with appurtenances necessary or convenient tomake said underground and surface installations an integrated electric system and in connection with all the foregoing to cut, trim or chemically treat trees and shrubbery to the extent necessary to install and maintain said electric system, said electric system to be located upon, under, over and across the following described lands and premises situated in the County of Spokane, State of Washington, and more particularly described as follows:

The East Half of the Northeast Quarter of Section 22, Township 28 North, Range 45 E.W.M.

Together with the right at all times to Grantee, its successors and assigns, of ingress to, and egress from said lands, across adjacent lands of the Grantor, for the purpose of installing, constructing, altering, repairing, energizing, operating and maintaining said electric system, and the right at any time to remove all or any part of said electric system from said land.

Grantee is responsible, as provided by law, for any damage to the Grantor through its negligence in the construction, operation and maintenance of said electric system, across, over, upon and under the property described above.

The rights, title, privilege and authority hereby granted shall continue and be in force until such time as Grantee, its successors or assigns shall permanently remove all said electric system from said lands, or shall permanently abandon said electric system, at which time all such rights, title, privilege and authority shall terminate.

The undersigned covenant that they are the owners of said lands and the same are free of encumbrances, except: Plat of Record and a mortgage to Rock E. Caley trustee (mortgagee), easements dedication & reservations of record.

IN WITNESS WHEREOF, the undersigned have set their hands and seals this 25 day of September, 1974.

ATTEST:

Mt. Spokane Chairlift Inc

Ethel S. Kirby Secretary

By: Rock E. Caley President

1% Excise Tax on Real Estate
Sale, Amt. Pd $ None
Date 2/28/75 No. 112140
DON W. BROWN, Co. Treas.
By

STATE OF WASHINGTON)
: ss.
County of Spokane)

On this 25th day of SEPTEMBER, 1974, before me personally appeared ROCK E. CALEY and ETHEL S. KIRBY, to me known to be the President and Secretary, of the corporation that executed the within and foregoing instrument, and each acknowledged that said instrument was the free and voluntary act and deed of said corporation, for the uses and purposes therein mentioned, and each on oath stated that they were authorized to execute said instrument, and that the seal affixed is the corporate seal of said corporation.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day and year above written.

Harvey H. Knell
Notary Public in and for the State of Washington, residing at Spokane

NOTARY PUBLIC STATE OF WASHINGTON

IP&L Co. 3-19-71

32

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OFF. VOL. 219 PAGE 1023

Individual Form
SUBORDINATION AGREEMENT
RE RIGHT-OF-WAY EASEMENT

The undersigned being the ~~Seller~~, ~~Purchaser~~, ~~Mortgagor~~, Mortgagee (strike out the inapplicable words) referred to in the RIGHT-OF-WAY EASEMENT to which this SUBORDINATION AGREEMENT is attached states that he, ~~she~~, ~~they~~, it (strike out the inapplicable words) have read the foregoing RIGHT-OF-WAY EASEMENT and hereby release any interest which the undersigned holds in the property therein described to the extent, but only to the extent, necessary to subordinate that interest to the easement therein granted.

IN WITNESS WHEREOF, the undersigned has set HIS hand(~~s~~) and seal(~~s~~) this 25TH day of SEPTEMBER, 1974.

Rock E. Caley, Trustee
Mortgagee

STATE OF WASHINGTON)
: ss.
County of SPOKANE)

I, the undersigned, a Notary Public, do hereby certify that on this 25TH day of SEPT., 1974, personally appeared before me ROCK E. CALEY, AS TRUSTEE, to me known to be the individual(~~s~~) described in and who executed the within instrument, and acknowledged that HE signed the same as HIS free and voluntary act and deed, for the uses and purposes therein mentioned. Roc

and authority to execute this agreement

Given under my hand and official seal the day and year in the certificate above written.

WITH HAS THE

NOTARY PUBLIC STATE OF WASHINGTON

George H. Carey
Notary Public in and for the State of Washington, residing at Deer Park.

FILED OR RECORDED
REQUEST OF GRANTEE
FEB 28 11 06 AM '75
VERNON W. CHLAND, AUDITOR
SPOKANE COUNTY, WASH.
DEPUTY M Miller

IP&L Co. 3-19-71

3.00

Req. E 320 2nd 99202

33

FILED OR RECORDED
REQUEST OF Mt Spokane Chair Lift Inc
JAN 9 9 09 AM 1973 2.00
VERNON OHLAND, AUDITOR
SPOKANE COUNTY, WASH.
DEPUTY

7301090028

VOL. 149 PAGE 1842
DESCRIPTION VERIFIED
By JWA 1-17-72

WARRANTY DEED

Req N 5328 Washington St.
99208

Indexed
Recorded
Compared
Mailed

THE GRANTOR, INLAND EMPIRE PAPER COMPANY, for and in consideration of Ten Dollars ($10.00), and other valuable consideration in hand paid, conveys and warrants to MT. SPOKANE CHAIR LIFT, INC., a Washington corporation, the following described real estate, situated in the County of Spokane, State of Washington, to-wit:

The East Half of the Northeast Quarter of Section 22, in Township 28 North, Range 45 East, W.M., in Spokane County, Washington.

SUBJECT TO:

General and Fire Taxes for 1972;

Easements and reservations of record and apparent upon the ground; and

The Grantor reserves the perpetual right to enter upon the said conveyed lands for the purpose of crossing over and through said lands, reserving the perpetual right to use all existing roads thereon, together with the perpetual right to modify the alignment and the grade of all existing roads.

The Grantor further reserves the right to construct, modify and to perpetually use a right-of-way for road purposes over and across the herein described lands, the location of said right-of-way to be selected by agreement between the parties, it being understood that said right-of-way for road purposes shall be in addition to presently existing roads on said property.

TAX ON CONVEYANCES — FIVE DOLLARS

JAN 9 1973

IN WITNESS WHEREOF, said corporation has caused this instrument to be executed by its proper officers and its corporate seal to be hereunto affixed this 21st day of January, 1972.

INLAND EMPIRE PAPER COMPANY

By James P. Cowles
President

Attest: W. W. Witherspoon
Secretary

JAN 1973

STATE OF WASHINGTON)
) ss.
County of Spokane)

Excise Tax on Real Estate
Sale, Amt Pd $250.00
Date 1/25/72 No. 60389
MERTON L. HOWARD, Co. Treas.
By

On this 21st day of January, 1972, before me, the undersigned, a Notary Public in and for the State of Washington, duly commissioned and sworn, personally appeared JAMES P. COWLES and W. W. WITHERSPOON, to me known to be the President and Secretary, respectively, of INLAND EMPIRE PAPER COMPANY, the corporation that executed the foregoing instrument, and acknowledged the said instrument to be the free and voluntary act and deed of said corporation, for the uses and purposes therein mentioned, and on oath stated that they are authorized to execute the said instrument and that the seal affixed is the corporate seal of said corporation.

IN WITNESS my hand and official seal hereto affixed the day and year first above written.

NOTARY PUBLIC in and for the State of Washington, residing at Spokane

36

FILED OR RECORDED
REQUEST OF Grantee
MAY 24 2 02 PM '74
VERNON W. OHLAND, AUDITOR
SPOKANE COUNTY, WASH.
DEPUTY

7405240177

DESCRIPTION VERIFIED
By JWG

REC. VOL. 196 PAGE 564

JEN

MODIFICATION OF RESERVATIONS CONTAINED IN DEEDS

Req Rt 1 Box 416B
Mead. WA 99021 5.00

THIS INDENTURE, Made this 23rd day of May, 1974, by INLAND EMPIRE PAPER COMPANY, hereinafter referred to as "Grantor," to MT. SPOKANE CHAIR LIFT, INC., a corporation, hereinafter referred to as "Grantee.".

W I T N E S S E T H:

WHEREAS, by Warranty Deed recorded January 25, 1972, under Auditor's File No. 599367C in the Office of the County Auditor for Spokane County, Washington, Grantor conveyed to the Grantee the East Half of the Southeast Quarter of Section 15, Township 28 North, Range 45 E.W.M., Spokane County, Washington, and

WHEREAS, by Warranty Deed recorded January 9, 1973, as Document No. 7301090028 in the Office of the County Auditor for Spokane County, Washington, Grantor conveyed to Grantee the East Half of the Northeast Quarter of Section 22, Township 28 North, Range 45 E.W.M., Spokane County, Washington, and

WHEREAS, both of said instruments of conveyance contained the following reservations:

> The Grantor reserves the perpetual right to enter upon the said conveyed lands for the purpose of crossing over and through said lands, reserving the perpetual right to use all existing roads thereon, together with the perpetual right to modify the alignment and the grade of all said existing roads.
>
> The Grantor further reserves the right to construct, modify and to perpetually use a right-of-way for road purposes over and across the herein described lands, the location of said right-of-way to be selected by agreement between the parties, it being understood that said right-of-way for road purposes shall be in addition to presently existing roads on said property.

and,

1% Excise Tax on Real Estate
Sale, Amt. Pd $ None
Date 5/24/74 No. 99996
DON W. BROWN, Co. Treas.
By

WHEREAS, by instrument recorded July 11, 1972, as Document No. 636616C in the Office of the County Auditor for Spokane County, Washington, Grantor agreed to the Modification of said Reservations, and

WHEREAS, the parties hereto desire to further modify said reservations,

NOW, THEREFORE, in consideration of $10.00 and other good and valuable consideration, the Grantor does hereby agree:

1. The reservations contained in said Warranty Deeds, which reservations are hereinabove set forth, shall remain in full force and effect as to all of that part of the East Half of the Northeast Quarter of Section 22, Township 28 North, Range 45 E.W.M., lying South of the following described line:

> Commencing at the Northeast corner of Section 22, thence South 2304.87 feet along the East section line of said Section 22 to the point of beginning; Thence South 66°42'05" West 223.24 feet; thence South 71°48'14" West 227.37 feet; thence South 87°04'21" West 176.23 feet; thence North 80°05'44" West 127.91 feet; thence North 52°29'02" West 95.60 feet; thence North 15°22'34" West 82.97 feet; thence North 2°24'21" West 119.10 feet; thence North 37°27'02" West 59.20 feet; thence North 69°30'01" West 228.46 feet; thence North 55°32'31" West 123.71 feet; thence North 29°48'51" West 102.58 feet; thence North 12°31'43" West 32.27 feet; thence North 23°17'23" West 268.97 feet.

2. As to the remainder of the property described in said Deed, to-wit that part of the East Half of the Northeast Quarter of Section 22, lying North of the above described line, and all of the East Half of the Southeast Quarter of Section 15, all in Township 28 North, Range 45 E.W.M., Grantor does hereby release its rights to locate and construct roads on said property and except as hereinafter provided its right to modify the alignment and grade of existing roads on said property.

Grantor reserves the right to use all roads presently existing on said property together with all roads hereinafter constructed on said property. Grantor further reserves the right to modify the alignment and grade of that portion of an existing road described in Dedication of Easement dated March 12, 1974, executed by the Grantee and of record in Official Volume 190 at page 664, in the Office of the County Auditor for Spokane County, which is situate in the Northeast Quarter of the Southeast Quarter of Section 15, Township 28 North, Range 45 E.W.M., to the end that every curve of said right of way shall have a radius of at least 75 feet, said radius being measured from centerline to centerline.

GRANTEE HEREBY AGREES that in consideration of the release of reservation hereinabove set forth the Grantee shall not change, relocate and/or abandon that portion of the right of way described in said Dedication of Easement dated March 12, 1974, executed by Grantee and of record in Official Volume 190 at page 664, in the Office of the County Auditor for Spokane County, State of Washington, which is situate in the East Half of the Southeast Quarter of Section 15, Township 28 North, Range 45 E.W.M. without the prior written consent of Grantor.

EXECUTED this 23rd day of May, 1974.

INLAND EMPIRE PAPER COMPANY

BY James P. Comles
President

Attest: [illegible]
Secretary

MT. SPOKANE CHAIR LIFT, INC.

BY [illegible] Pres

Attest: _____

STATE OF WASHINGTON)
) ss
County of Spokane)

On this 23rd day of May, 1974, before me personally appeared James P. Cowles and W. H. Cowles, 3rd to me known to be the President and Secretary of INLAND EMPIRE PAPER COMPANY, the corporation that executed the within and foregoing instrument and acknowledged said instrument to be the free and voluntary act and deed of said corporation, for the uses and purposes therein mentioned, and each on oath stated that he is authorized to execute said instrument and that the seal affixed is the corporate seal of said corporation.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day and year first above written.

Marie G. Dahlen
NOTARY PUBLIC in and for the State of Washington, residing at Spokane.

STATE OF WASHINGTON)
) ss
County of Spokane)

On this 24th day of May, 1974, before me personally appeared Rock E. Haley and _____, to me known to be the President and _____ of MT. SPOKANE CHAIR LIFT, INC., the corporation that executed the within and foregoing instrument and acknowledged said instrument to be the free and voluntary act and deed of said corporation, for the uses and purposes therein mentioned, and each on oath stated that he is authorized to execute said instrument and that the seal affixed is the corporate seal of said corporation.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day and year first above written.

Genevieve S. Dodson
NOTARY PUBLIC in and for the State of Washington, residing at Spokane.

41

Indexed
Recorded
Compared
Paged

Stat
Mt Sp
Mt Sp

VOL. 97 PAGE 1526

565091C

FILED OR RECORDED
REQUEST OF Rock E Caley
JUL 27 10 54 AM 1971
VERNON OHLAND, AUDITOR
SPOKANE COUNTY, WASH.
DEPUTY D. Young

STATE OF WASHINGTON
STATE PARKS AND RECREATION COMMISSION

EASEMENT

2.00

Req 1100 IBM Bldg 98101
Seattle, WA 98101

In re application by Mt. Spokane)
Chair Lift, Inc. for an easement)
of ingress and egress within)
Mount Spokane State Park)

ORDER

It appearing the State of Washington State Parks and Recreation Commission is record owner of real property commonly known as Mount Spokane State Park, the entrance to said State Park being situate in the NE 1/4 of Section 32, Township 28 North, Range 45 East, W.M., Spokane County, Washington, and Mt. Spokane Chair Lift, Inc. leases a portion of said State Park property under a concession agreement dated September 19, 1966;

It further appearing Mt. Spokane Chair Lift, Inc. is desirous of obtaining access through the Mount Spokane State Park to certain private properties located in Sections 15, 22 and 27, Township 28 North, Range 45 East, W.M., Spokane County, Washington in order to develop said private properties for both private and public uses, and Spokane County and certain financial institutions have required as a condition precedent to development that an easement be granted the developer providing access to said properties; and

It further appearing the State of Washington State Parks and Recreation Commission met February 22, 1971 in order to determine the merits of such an easement and at that time approved the granting of egress and ingress from State Parks' roads to service the private properties located in Sections 15, 22 and 27 as hereinabove referred to; it is therefore

ORDERED AND DETERMINED: That an easement be granted and that the same is hereby granted to Mt. Spokane Chair Lift, Inc. and/or Mt. Spokane Development Co., successors and assigns of the same, and to the general public, of ingress and egress through the Mount Spokane State Park over the existing road from the entrance to said State Park being situate in the NE 1/4 of Section 32, Township 28 North, Range 45 East, W.M., Spokane County, Washington and further, to use, maintain and relocate roads in the Mount Spokane State Park situate in Sections 15, 22 and 27 to gain access to certain private properties located in Sections 15, 22 and 27, Township 28 North, Range 45 East, W.M., Spokane County, Washington.

Dated this 19 day of July, 1971.

Spokane Excise Tax Exempt
Date 7-21-1971
By R. J. Roth
Deputy County Treasurer

STATE PARKS AND RECREATION COMMISSION

By Charles H. Odegaard
Charles H. Odegaard, Director

State of Washington)
County of) ss.

I, Malachy R. Murphy, the undersigned, a Notary Public in and for the State of Washington, do hereby certify that on this 19th day of July, 1971, before me personally appeared Charles H. Odegaar to me known to be the duly appointed, qualified and acting Director of the State Parks & Recreation Commission for the State of Washington, that executed the within and foregoing instrument and acknowledged the said instrument to be the free and voluntary act of said State Parks & Recreation Commission for the uses and purposes therein mentioned, and on oath stated that he was authorized to execute said instrument for the State Parks & Recreation Commission.

In witness whereof, I have hereunto set my hand and affixed my official seal the day and year first above written.

Malachy R. Murphy
Notary Public in and for the State of Washington, residing at Olympia